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Title 33 —Navigation and Navigable Waters

Chapter I —Coast Guard, Department of Homeland Security

Subchapter N —Outer Continental Shelf Activities

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PART 143—DESIGN AND EQUIPMENT

Authority: 43 U.S.C. 1333(d)(1), 1348(c), 1356; 49 CFR 1.46; section 143.210 is also issued under 14 U.S.C. 946 and 31 U.S.C. 9701.

Source: CGD 78-160, 47 FR 9382, Mar. 4, 1982, unless otherwise noted.

Subpart A—General

§ 143.1 Purpose.

This part prescribes design and equipment requirements for units engaged in OCS activities.

§ 143.15 Lights and warning devices.

- (a) OCS facilities must meet the lights and warning devices requirements under part 67 of this chapter concerning aids to navigation on artificial islands and fixed structures.
- (b) Vessels, including attending vessels but excluding MODUs under paragraph (a) of this section, must meet the lights and warning devices requirements under the International Regulations for Preventing Collisions at Sea 1972 or under local rules provided for in Rule 1 of those Regulations.

[CGD 78-160, 47 FR 9382, Mar. 4, 1982, as amended by USCG-1998-3799, 63 FR 35530, June 30, 1998]

Subpart B—OCS Facilities

§ 143.100 Applicability.

This subpart applies to OCS facilities except mobile offshore drilling units.

§ 143.101 Means of escape.

- (a) “Primary means of escape” shall be fixed stairways or fixed ladders of metal construction.
- (b) “Secondary means of escape” shall be types approved for “primary means of escape” or portable, flexible ladders, knotted man ropes, and other devices satisfactory to the Officer in Charge, Marine Inspection.
- (c) Manned OCS facilities shall be provided with at least two “primary means of escape” extending from the uppermost platform level that contains living quarters or that personnel occupy continuously, to each successively lower working level and to the water surface. Working levels without living quarters, shops, or offices in manned facility structural appendages, extensions, and installations that personnel occupy only occasionally shall be provided with one “primary means of escape” and, when necessary in the opinion of the Officer in Charge, Marine Inspection, one or more “secondary means of escape.”
- (d) Unmanned OCS facilities shall be provided with at least one “primary means of escape” extending from the uppermost platform working level to each successively lower working level and to the water surface. When personnel are on board, unmanned facilities shall also be provided with one or more “secondary means of escape,” but not more than one will be required for every 10 persons extending from the uppermost working level of the facility to each successively lower working level and to the water surface, excluding facility appendages and installations, unless “secondary means of escape” from such appendages and installations are necessary in the opinion of the Officer in Charge, Marine Inspection.
- (e) “Means of escape” shall be suitably accessible to personnel for rapid facility evacuation.
- (f) When two or more “means of escape” are installed, at least two shall be located as nearly diagonally opposite each other as practicable unless such requirement is unreasonable or impracticable in the opinion of the Officer in Charge, Marine Inspection.

§ 143.105 Personnel landings.

- (a) Sufficient personnel landings shall be provided on each manned OCS facility to assure safe access and egress. When due to special construction personnel landings are not feasible, then suitable transfer facilities to provide safe access and egress shall be installed.
- (b) The personnel landings shall be provided with satisfactory illumination. The minimum shall be one-foot candle of artificial illumination as measured at the landing floor and guards and rails.

§ 143.110 Guards and rails.

- (a) Except for helicopter landing decks which are provided for in paragraph (b) of this section, and areas not normally occupied, the unprotected perimeter of all floor or deck areas and openings shall be rimmed with guards and rails or wire mesh fence. The guard rail or fence shall be at least 42 inches high. The two intermediate rails shall be so placed that the rails are approximately evenly spaced between the guard rail and the floor or deck area: *Provided*, That if a toe board is installed then one of the intermediate rails may be omitted and the other rail placed approximately half way between the top of the toe board and the top guard rail.
- (b) The unprotected perimeter of the helicopter landing deck shall be protected with a device of sufficient strength and size as to prevent any person from falling from such deck.
- (c) Each catwalk and each stairway shall be provided with a suitable guard rail or rails, as necessary.

§ 143.120 Floating OCS facilities.

- (a) Before construction is started on a proposed floating OCS facility, the owner or operator of the facility must submit to the Coast Guard for approval all plans and information listed in subpart C of 46 CFR part 107 which relate to the facility. All plans and information must be submitted according to the procedures in that subpart.
- (b) The facility must comply with the requirements of subchapters F (Marine Engineering) and J (Electrical Engineering) of 46 CFR chapter I and 46 CFR part 108 (Design and Equipment). Where unusual design or equipment needs make compliance impracticable, alternative proposals that provide an equivalent level of safety may be accepted. These requirements do not apply to production systems on the facility.
- (c) The Officer in Charge, Marine Inspection, determines whether a floating OCS facility meets the requirements of paragraph (b) of this section and issues a certificate of inspection for each facility which meets these requirements. Inspection of the facility may be required as part of this determination.
- (d) Each floating OCS facility that is constructed after April 2, 2018 must comply with the requirements of 46 CFR subpart 111.108 prior to engaging in OCS activities.

[CGD 78-160, 47 FR 9382, Mar. 4, 1982, as amended by USCG-2012-0850, 80 FR 16990, Mar. 31, 2015]

Subpart C—Mobile Offshore Drilling Units

§ 143.200 Applicability.

This subpart applies to mobile offshore drilling units when engaged in OCS activities.

§ 143.201 Existing MODUs exempted from new design requirements.

Any mobile offshore drilling unit built before, under construction on, or contracted for prior to April 5, 1982 is not required to meet the design requirements of this subpart until the unit is rebuilt. Until rebuilt, the unit must continue to comply with the design requirements applicable to the unit on April 4, 1982.

[CGD 78-160, 47 FR 11011, Mar. 15, 1982]

§ 143.205 Requirements for U.S. and undocumented MODUs.

Each mobile offshore drilling unit that is documented under the laws of the United States or not documented under the laws of any nation must comply with the design, equipment, and inspection requirements of 46 CFR parts 107 and 108 in order to engage in OCS activities.

§ 143.207 Requirements for foreign MODUs.

Each mobile offshore drilling unit that is documented under the laws of a foreign nation must, when engaged in OCS activities, comply with one of the following:

- (a) The design and equipment standards of 46 CFR part 108.
- (b) The design and equipment standards of the documenting nation if the standards provide a level of safety generally equivalent to or greater than that provided under 46 CFR part 108.
- (c) The design and equipment standards for mobile offshore drilling units contained in the International Maritime Organization (IMO, formerly Inter-Governmental Maritime Consultative Organization or IMCO) (IMO) Code for Construction and Equipment of Mobile Offshore Drilling Units (IMO Assembly Resolution A.414(XI)) which has been incorporated by reference.

§ 143.208 Hazardous location requirements on foreign MODUs.

Each mobile offshore drilling unit that is documented under the laws of a foreign nation and is constructed after April 2, 2018 must comply with the requirements of 46 CFR subpart 111.108 prior to engaging in OCS activities.

[USCG-2012-0850, 80 FR 16990, Mar. 31, 2015]

§ 143.210 Letter of compliance.

- (a) The Officer in Charge, Marine Inspection, determines whether a mobile offshore drilling unit which does not hold a valid Coast Guard Certificate of Inspection meets the requirements of § 143.205 or § 143.207 relating to design and equipment standards and issues a letter of compliance for each unit which meets the requirements. Inspection of the unit may be required as part of this determination.
- (b) A letter of compliance issued under paragraph (a) of this section is valid for one year or until the MODU departs the OCS for foreign operations, whichever comes first.
- (c) The owner or operator of a foreign mobile offshore drilling unit requiring a letter of compliance examination must pay the fee prescribed in 46 CFR 2.10-130.

[CGD 84-098a, 53 FR 18981, May 26, 1988, as amended by CGD 91-030, 60 FR 13563, Mar. 13, 1995]

Subpart D—Vessels

§ 143.300 Applicability.

This subpart applies to all vessels engaged in OCS activities except mobile offshore drilling units.

§ 143.301 Load line requirements.

- (a) Vessels, including foreign vessels, which would be subject to the requirements of subchapter E of 46 CFR chapter I concerning load lines when arriving at or proceeding to sea from any port or place within the United States must comply with those requirements when engaged in activities on the OCS.
- (b) Load line certificates and load line exemption certificates issued or accepted under subchapter E of 46 CFR chapter I are accepted as evidence of compliance with paragraph (a) of this section.

§ 143.302 Hazardous location requirements on foreign vessels engaged in OCS activities.

Each vessel that is documented under the laws of a foreign nation and is constructed after April 2, 2018 must comply with the requirements of 46 CFR subpart 111.108 prior to engaging in OCS activities.

[USCG-2012-0850, 80 FR 16990, Mar. 31, 2015]

Subpart E—Standby Vessels

Source: CGD 84-098b, 54 FR 21571, May 18, 1989, unless otherwise noted.

§ 143.400 Applicability.

This subpart applies only to standby vessels meeting the requirements of this subpart and specifically designated in an Emergency Evacuation Plan (EEP) required by § 146.140 or § 146.210 of this chapter to provide rapid evacuation assistance in the event of an emergency.

§ 143.401 Vessel certification and operation.

Standby vessels must meet the following:

- (a) Have a valid certificate of inspection issued in compliance with Subchapters H, I, or T of 46 CFR Chapter I.
- (b) Be capable of carrying and providing shelter for 100 per cent of the number of persons on the most populated facility that the standby vessel is designated to assist. Crew spaces may be used to meet the requirements of this section.
- (c) Provide bunks or aircraft type reclining seats for 10 per cent of the number of persons on the most populated facility that the standby vessel is designated to assist. Crew spaces may be used to meet the requirements of this section.
- (d) Not carry or store goods, supplies, and equipment on the deck of the standby vessel or in other locations that may hinder the vessel's ability to render assistance to the facility that the vessel is designated to assist.
- (e) Not carry or store any hazardous material.

§ 143.405 Equipment.

- (a) Standby vessels must have, at least, the following equipment:
 - (1) Multiple propellers or propulsion devices.
 - (2) Two searchlights.
 - (3) For vessels certificated under Subchapter H of 46 CFR Chapter I, a line throwing appliance that meets the requirements in 46 CFR 75.45.
 - (4) For vessels certificated under subchapters I or T of 46 CFR chapter I, a line throwing appliance that meets the requirements of 46 CFR 94.45.
 - (5) A Stokes or comparable litter.
 - (6) One blanket for each person on the most populated facility that the standby vessel is designated to assist.
 - (7) Means for safely retrieving persons, including injured or helpless persons, from the water. The means of retrieval must be demonstrated to the satisfaction of the Officer in Charge, Marine Inspection.
 - (8) A scramble net that can be rigged on either side of the standby vessel.
 - (9) A minimum of four Coast Guard approved ring life buoys, each equipped with 15 fathoms of line.
 - (10) An immersion suit approved by the Coast Guard under 46 CFR 160.171, or a buoyant suit meeting Supplement A of ANSI/UL-1123-1987 and approved under 46 CFR 160.053, for each member of the standby vessel's crew when the standby vessel operates north of 32 degrees north latitude in the Atlantic Ocean or north of 35 degrees north latitude in all other waters.
 - (11) Two boat hooks.
 - (12) A fire monitor with a minimum flow rate of, at least, 500 gallons per minute.
 - (13) One two-way radio capable of voice communications with the OCS facility, helicopters or other rescue aircraft, rescue boats, and shore side support personnel.
 - (14) Floodlights to illuminate the personnel and boat retrieval area, the scramble net when deployed, and the water around the personnel retrieval and scramble net deployment areas.
 - (15) A copy of "The Ship's Medicine Chest and Medical Aid at Sea", DHHS Publication No. (PHS) 84-2024, available from the Superintendent of Documents, U.S. Government Printing Office, Washington, DC 20402.
 - (16) An industrial first aid kit sized for 50 percent of the number of persons on the most populated facility that the standby vessel is designated to assist.
 - (17) Coast Guard approved life preservers for 50 percent of the number of persons on the most populated facility that the standby vessel is designated to assist.
- (b) Equipment required by paragraph (a) of this section must be to the satisfaction of the Officer in Charge, Marine Inspection.

§ 143.407 Manning.

Standby vessels must be crewed in accordance with their certificate of inspection for 24 hour operation. The Officer in Charge, Marine Inspection, may require the crew to be augmented, as necessary, to provide for maneuvering the standby vessel, for lookouts, for rigging and operating retrieval equipment, and for caring for survivors.